

Kedarnath Lal v. Sheonarain & Ors.

Citation: (1969) 2 SCC 787 | Court: Supreme Court | Year: 1969

Coram: 3-Judge Bench (J.C. Shah, V. Ramaswami, A.N. Grover JJ.) | Subject: Property Law & TPA | Provisions: Transfer of Property Act Sec

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Elucidated the Doctrine of Lis Pendens under Section 52 of the Transfer of Property Act. Any transfer of immovable property pending litigation in a court of competent jurisdiction is subordinate to the rights of the parties determined by the final decree.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Transfer of Property Act Sec 52. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Transfer of Property Act Sec 52.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Section 52 does not invalidate transfers made pendente lite; rather, it renders the transferee bound by the result of the litigation, regardless of notice or good faith. This prevents endless alienation and frustration of judicial decrees.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Affirmed the maxim 'pendente lite nihil innovetur' under Section 52 TPA.
- â€ Held that transfer pendente lite is not void, but entirely subject to the decree.
- â€ Protected decree holders against collusive property sales during civil suits.